

Form No.SC (C) – 2
[under sub-rule (1A) of rule 3 of the Customs (Settlement of Cases) Rules, 2007]
Before the Customs and Central Excise Settlement Commission
Bench at _____
Form of application for settlement of a case of person under sub-section (5) of section 127B of the Act

1.	Full name of the Person	
2.	(i) Postal address of the person (ii) E-mail address of the Person, if any	
3.	(i) Address for communication (ii) Telephone No.	
4.	(i) Permanent Account No. (ii) IEC No. (if any) (iii) Status (<i>see note 2</i>)	
5.	(i) Commissioner of Customs having jurisdiction over the person (ii) Postal address of the Commissioner of Customs having jurisdiction over the person	
6.	Details of Show Cause Notice issued to the person (a) Show Cause Notice No. and date (b) Period of dispute in the notice (c) Duty demanded in the notice (in Rs.) (d) Name of the noticee in the Show Cause Notice from when the duty is demanded (e) Whether the case of noticee from whom the duty is demanded, has been settled by the Commission or application is pending for settlement before the Commission. If yes, please provide the status and details of that application. (f) Dispute in connection with which the application for settlement is made. (g) Adjudicating authority before whom (h) (i) the notice of any person is pending adjudication.	
7.	Brief facts of the case and particulars of the issues to be settled	

Signature of the Person

Verification

I son/daughter of residing at do solemnly declare that I am making this application in my capacity as, and I am competent to verify it.

That the contents of this application are true and that I have not filed any application for settlement of the provisions of the Chapter XIVA of the Customs Act, 1962 before the Settlement Commission and also that no information relevant to the facts of the case has been suppressed. Annexures of the documents accompanying the application are true copies of the originals and the tables showing financial transactions are correct and are duly attested by me.

That no proceeding in respect of the case for which settlement is being sought, is pending before Commissioner (Appeals), Customs, Excise and Service Tax Appellate Tribunal or the courts, as the case may be, or has been remanded back to the adjudicating authority by the said appellate authorities/courts.

Verified today the day of (mention the month and year) (mention the place)

Deponent

Note:

1. The application fee should be credited in a branch of the authorized bank or a branch of the State Bank of India or a branch of Reserve Bank of India and the triplicate copy of the challan sent to the Settlement Commission with application. The Settlement Commission will not accept cheques, drafts, hundies or other negotiable instruments.
2. Please state whether individual, Hindu undivided family, company, firm, an association of persons, etc.

Annexure

Statement containing particulars, referred to in item 7 of the application made under sub-section (5) of section 127B of the Customs Act, 1962.

1. Full and true disclosure of the facts regarding the issues to be settled including the terms of settlement sought for by the applicant.

Signature of the Person

Place :

Date :